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Thursday, July 30, 2026

Open Records Division
Office of the Attorney General
P.O. Box 12548
Austin, Texas 78711-2548

Re: Requestor's Comments Under Section 552.304 — Frisco Independent School District, PIR W005970-062526, ruling request dated July 30, 2026

To the Open Records Division:

I am the requestor in the above matter and submit these comments under Section 552.304 of the Government Code. The District's July 30, 2026 letter asks the Division to rule on a request that is no longer live, asserts two exceptions the District has no authority to assert on its own behalf, and seeks to withhold in their entirety records that the District itself publishes to the public. I ask that the requested information be ordered released.

1. The operative request is the modified request of July 16, 2026, not the request the District briefed.

The District's letter reproduces my original ten item request of June 25, 2026, in full and identifies it as "the Request." That request no longer exists. On July 16, 2026, in response to the District's cost estimate and its demand for a $720 deposit, I modified the request to five items and expressly withdrew the remainder without prejudice. Under Section 552.263(e-1), a request modified in response to a deposit requirement is a separate request for purposes of the Act, received on the date the governmental body receives the written modification. The District appears to accept this, because it relies on the July 16 modification to establish the timeliness of its ruling request. It cannot rely on the modification for timeliness while briefing the withdrawn request on the merits.

The five items now at issue are: all versions of the Iron Horse Aquatics Swim Team Handbook in the District's custody from January 1, 2023 forward; the revision history of two identified Google Workspace files; domain registration, hosting, payment, and infrastructure records for ironhorseaquatics.net; and signed parent acknowledgments of the Iron Horse Aquatics Parent Code of Conduct. The modification eliminated every category of email correspondence. The District's own cost estimate attributed roughly 75 of its 80 estimated labor hours, and the entirety of its stated

FERPA redaction burden, to an all-mailbox email search producing 47,426 results. None of that survives in the live request, and none of it can support withholding what remains.

2. Sections 552.1101 and 552.110 cannot be asserted by the District on its own behalf.

Section 552.1101(b) provides that the proprietary information exception may be asserted only by a vendor, contractor, potential vendor, or potential contractor, in the manner described by Section 552.305(b), for the purpose of protecting that party's own interests. The District is not a vendor or contractor to itself. Its assertion of Section 552.1101 is therefore facially unavailable.

Section 552.110 likewise protects the interests of third parties and requires specific factual evidence demonstrating that a protected trade secret or commercial interest exists. Where a governmental body invokes it on a third party's behalf, Section 552.305(d) obliges the governmental body to make a good faith attempt to notify that third party within ten business days of receiving the request, and the third party must submit its own arguments. Absent such submissions, this Division has consistently concluded that there is no basis to find a protected proprietary interest and that the information may not be withheld on that ground.

The District's letter identifies no third party, states no facts about any commercial or trade secret interest, and gives no indication that Section 552.305 notice was attempted. I ask the Division to require the District to identify the third party on whose behalf it asserts these exceptions and to demonstrate compliance with Section 552.305(d). The identification matters here beyond procedure. In the parallel Texas Education Agency proceeding, Docket No. 120-R10-06-2026, the District has taken the position that Iron Horse Aquatics is a club sport outside its Board's oversight, while its own handbook grants a dues waiver to "full-time employees of Frisco ISD" and its Associate Director of Athletics writes of "Frisco ISD employees (Iron Horse Aquatics)." If Iron Horse Aquatics is a distinct third party with proprietary interests, that party must appear and say so. If it is not distinct from the District, Sections 552.110 and 552.1101 have no application at all.

3. Section 552.103 does not reach these records.

The District's letter cites Section 552.103 without identifying any litigation. To my knowledge the only state court proceeding between the District and me, Cause No. 493-04795-2026 in the 493rd District Court of Collin County, was nonsuited without prejudice on July 11, 2026, and the nonsuit was accepted on July 13, 2026 — more than two weeks before the District's letter. The District's cost estimate instead characterizes my pending administrative appeal before the Texas Education Agency as a quasi-judicial forum. Even accepting that characterization, I am the opposing party in that appeal, and Section 552.103 does not shield information from the party it is asserted against. The District has already filed a 156-page local record in that proceeding, and the handbook it seeks to withhold here is published on a public website that any member of the public may read today.

4. Sections 552.101 and 552.117 cannot support withholding in the entirety.

The District asserts that responsive documents are excepted "in their entirety." Section 552.117 is a redaction provision addressed to specific categories of personal identifying information; it does not authorize withholding whole documents. The same is true of any confidentiality claim under Section 552.101. As to the only remaining item that touches individuals, the signed parent acknowledgments of the Parent Code of Conduct, the responsive content is a parent's own signature and date on a program policy document. To the extent any student identifying information appears, redaction is the remedy the Act contemplates, and the District's own letter concedes that it will make mandatory redactions if release is ordered. Handbook versions, Google Workspace revision metadata, and domain registration and hosting records contain no student information at all.

5. The reservation of unstated exceptions should be rejected.

The District asserts its exceptions "including but not limited to" those listed and reserves the right to add others in its Section 552.301(e) submission. Section 552.301(b) requires a governmental body to state the specific exceptions that apply within ten business days. An open ended reservation does not satisfy that requirement, and exceptions not properly and timely raised should not be entertained.

6. The record suggests the ruling request was predetermined.

The District's July 16, 2026, cost estimate, before I had narrowed anything, advised me that the District "will likely request an OAG ruling regarding all records you have requested herein as well," and that payment for labor "will not be voluntarily refunded to you by the District if the end result is that the District does not have to release the records per an OAG ruling." The District thus announced its intention to seek withholding of every record, coupled with a $720 nonrefundable deposit demand, before conducting the review that would identify what, if anything, was actually excepted. I narrowed the request specifically to remove the email review and FERPA burden the District cited. The District did not provide the revised cost estimate I requested. It sought this ruling instead. This is the District's third ruling request arising from my records requests concerning the same program.

7. Request.

I ask the Division to rule on the modified request of July 16, 2026, rather than the withdrawn request; to reject the assertions under Sections 552.1101 and 552.110 absent third party notice and a third party submission demonstrating a protected interest; to reject the assertion under Section 552.103; to hold that Sections 552.101 and 552.117 permit redaction rather than wholesale withholding; and to order the responsive information released. I further ask that the District be directed to provide me with the complete exhibits accompanying its submission, having furnished only partial exhibits.

Thank you for your consideration.

Respectfully submitted,

/s/Stephen Ray Jordan
Stephen Ray Jordan
Requestor

cc: Rebecca L. Bradley, Abernathy, Roeder, Boyd & Hullett, P.C., rbradley@abernathy-law.com
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